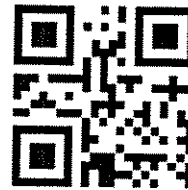


Order reserved on : 07.10.2022

Order pronounced on: 13.10.2022



CNR NO: GANG020025402013

Special Civil Suit No. 52/2013/A

ORDER

(BELOW EXHIBIT D-170)

(Delivered on this 13th day of the month of October of the year 2022)

1. Heard Ld. Advocate P. Rao for the defendant no. 20.
2. The plaintiff has given no objection to the this application. The defendant desires to implead M/s PVM

SCS No. 52/2013/A

Associates as a party in the present suit. It is contended by the defendant no.20 that vide Articles of Association dated 01.04.2013, the suit property was transferred by defendant no.1 to the above mentioned Association of Persons and thus the said Association is necessary party to the present suit. The defendant no.20 has relied on the copy of the Articles of Association.

3. I have perused the copy of the Articles of Association relied by the defendant no.20, it is a document executed before the Notary Public. It is not registered before the authorities.

4. Basically, said document was executed by the parties with the object of developing the properties mentioned therein. It also specifies the shares of the respective parties. It is further seen that the share of the defendant no.1 was decided based on his contribution by way of providing the properties for the development. The other two parties had contributed in terms of money.

5. In my opinion, said Articles of Association does not create any right, title in favour of the said Association based on the said document. In case there was such intention between the

parties, then same ought to have been crystallized by entering into an agreement. Therefore, no right or title is crystallized in favour of the Association. Apart from the above, there is enormous and inordinate delay in preferring the present application i.e. nearly after a decade, for which no explanation has been given in the application.

6. Be it as it may, we must not lose the sight of the fact that the plaintiff is a dominus-litus and therefore, if at all any such application has been filed, the same should have been preferred by the plaintiff. It is further to be appreciated that the members of the said Article of Association have not approached this Court and on the contrary, the defendant no. 20 desires to implead them without showing any justification for doing the same.

7. It appears from the conduct of the parties that they wish to protract the present proceedings by resorting to filing unmeritorious applications, till the Government accords them permission to settle the matter. Hence, the cost has to be imposed on the defendant no. 20.

8. In the backdrop of the above discussion, I pass following :

ORDER

The application is dismissed with cost of Rs. 2,000/- to be paid to the District Legal Services Authority as condition precedent.

Panaji,

Dated: 13/10/2022

Mp/-

(Ram Subrai Prabhu Dessai)
Senior Civil Judge, 'A' Court,
Panaji.